

23STCV31301 23STCV31301

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MOTION

FOR SUMMARY JUDGMENT OR SUMMARY ADJUDICATION

The Court

tenders the following tentative decision in the matter Eugene Ward v.

General Motors LLC, Los Angeles County Superior Court case number 23STCV31301, set for hearing on August 19, 2026. General Motors LLC (Defendant) moves for summary judgment against Eugene Ward (Plaintiff). Separately, Defendant moves for summary adjudication as to each cause of action individually. Plaintiff opposes the motion. The motion is denied.

A.

Factual

Summary

The

following is undisputed. Plaintiff purchased a 2020 Chevrolet Impala from Antelope Valley Chevrolet, Inc. (AVC) on June 25, 2023. (Plaintiff's Separate Statement (PSS) ¶¶ 1–2; Roybal Decl., Ex. A.) At the time, the vehicle had been driven 61,070 miles. (PSS ¶ 2; Roybal Decl., Ex. A.) Plaintiff was not the original owner of the vehicle. (PSS ¶ 4; Jensen Decl. ¶ 6, Ex. B.) The original owner received the vehicle on August 29, 2019, when it had been driven only 9 miles. (Ibid.) Defendant issued limited warranties in connection with the original transaction. (PSS ¶ 5; Jensen Decl. ¶¶ 7–8, Exs. C, D.) The coverage of those warranties began on August 29, 2019. (PSS ¶ 6; Jensen Decl., Ex. C.)

B.

Legal
Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party can show evidentiary support for a claim or defense and if not to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure Section 437c, subdivision (c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

As to each claim as framed by the complaint, a moving defendant “has met that party’s burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389 (*Dore*).) Once the defendant has met that burden, the burden shifts to the opposing plaintiff “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

C. Discussion

As a threshold matter, Plaintiff argues that Defendant’s motion for summary adjudication is procedurally deficient. Specifically, Plaintiff notes that Defendant’s separate statement of undisputed facts does not comply with the Rules of Court. If summary adjudication is sought as an alternative to the motion for summary judgment, “the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” (Rules of Court, rule 3.1350(b).) The separate

statement must separately identify each cause of action that is the subject of the motion and “[e]ach supporting material fact claimed to be without dispute with respect to the cause of action.” (Id., rule 3.1350(d)(1).)

Here, Defendant’s separate statement complies with rule 3.1350 with respect to Defendant’s motion for summary adjudication. It identifies each cause of action and the supporting material facts for each, by specifying “facts common to all issues.” Accordingly, Defendant’s motion for summary adjudication is procedurally proper.

To obtain summary judgment, Defendant must first meet its initial burden of demonstrating that all Plaintiff’s causes of action fail as a matter of law. Plaintiff brings his second cause of action under Commercial Code Section 2313. Under that provision, express warranties by the seller are created through “[a]ny affirmation of fact or promise made by the seller to the buyer,” “[a]ny description of the goods which is made part of the basis of the bargain,” and “[a]ny sample or model which is made part of the basis of the bargain.” (Com. Code, § 2313.) A buyer is one who “buys or contracts to buy goods” and the seller is “a person who sells or contracts to sell goods.” (Id., § 2103.)

Here, Defendant offers evidence that it did not sell Plaintiff the subject vehicle and is thus not a “seller” as defined in the Commercial Code. (Defendant’s Separate Statement (DSS) ¶ 2; Roybal Decl. ¶¶ 3–4.) But this ignores the fact that unexpired express warranty protections may be transferred to a subsequent purchaser if the warranty term has not fully run — it is only the plaintiff’s rights under the Song-Beverly Act which are extinguished. (See *Dagher v. Ford Motor Co.* (2015) 238 Cal.App.4th 905, 927.) Indeed, Defendant’s new vehicle limited warranty explicitly states that it extends to any subsequent owners. (Ex. C.) However, that warranty’s period had already expired by the time Plaintiff purchased the subject vehicle, as it only lasted for 60,000 miles. (Ibid.) Thus, Defendant has met its burden of demonstrating that the subject vehicle was not covered by an express warranty.

The burden thus shifts to Plaintiff to identify a triable issue of material fact. Plaintiff identifies additional express warranties related to emissions control systems. These include a 7-year or 70,000-mile emissions warranty and an 8-year or 80,000-mile emissions warranty for light vehicles. (Jensen Decl., Ex. C., p. 22.) These warranties do not contain the same assurance that they extend to subsequent owners, and involve further limitations related to the owner’s consistent service of the vehicle. Additionally, Plaintiff presents

evidence of special coverage related to his vehicle's evaporative emissions purge valve, which covers the part for 15 years or 150,000 miles, regardless of ownership. (Derderian Decl. ¶ 4, Ex. 2.) Plaintiff has presented evidence that Defendant offered certain warranties as a seller that extended to subsequent purchasers or buyers, such as Plaintiff. Thus, triable issues of material fact exist as to Defendant's second cause of action, and summary adjudication is denied. Summary judgment is denied as well.

Plaintiff brings his third and fourth causes of action for breach of the implied warranties of merchantability and fitness for a particular purpose. A warranty that goods shall be merchantable is implied in a contract for their sale if the seller is a merchant. (Com. Code, § 2314.) And "[w]here the seller at the time of contracting has reason to know any particular purpose for which the goods are required and that the buyer is relying on the seller's skill or judgment to select or furnish suitable goods, there is unless excluded or modified under the next section an implied warranty that the goods shall be fit for such purpose." (Id., § 2315.) Where there are no direct dealings between a manufacturer and purchaser, the manufacturer's implied warranties generally fall outside the scope of the UCC. (*Ballesteros v. Ford Motor Co.* (2025) 109 Cal.App.5th 1196, 1217.)

Here, it is undisputed that there were no direct dealings between Defendant and Plaintiff. Unlike Defendant's express warranties, which contemplated subsequent purchasers as discussed ante, any implied warranties from the original sale are inapplicable because Plaintiff did not purchase the vehicle from Defendant. Thus, Defendant has met its burden of demonstrating that Plaintiff's implied warranty claims fail as a matter of law.

Plaintiff argues that the implied warranties should still apply under U.S. Roofing, Inc. v. Credit Alliance Corp. (1991) 228 Cal.App.3d 1431. There, the Court recognized that while vertical privity is a prerequisite for recovery on a theory of breach of implied warranties, such privity may exist between parties other than the seller and direct buyer. (Id. at p. 1442–1443.) Specifically, where the direct purchaser of goods acted as an intermediary and leased the use of those goods directly to the plaintiff, the plaintiff could still bring an implied warranty claim against the manufacturer. (Ibid.) Such privity might exist here.

"If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to

justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just." (Code Civ. Proc., § 437c, subd. (h).) Plaintiff argues that AVC acts as an authorized dealer of Defendant and that certain agreements between those parties may establish vertical privity. And Plaintiff argues that Defendant has withheld these documents. Specifically, Defendant has failed to produce dealer agreements which are expected to contain "evidence regarding the relationship between Defendant and its authorized dealers, the dealers' authority to act on Defendant's behalf, and the contractual obligations relating to the sale, warranty administration, and servicing of Defendant's vehicles." (Derderian Decl. ¶ 6.) Under section 437c, subdivision (h), the Court finds it appropriate to deny Defendant's motion with respect to these causes of action to allow Plaintiff to conduct further discovery on the issue of whether privity exists between Plaintiff and Defendant. Accordingly, Defendant's motion is denied without prejudice with respect to the third and fourth causes of action as well.

Finally, Plaintiff's first cause of action is brought pursuant to the Magnuson-Moss Warranty Act. (15 U.S.C. § 2301–2312.) The parties agree that this cause of action is derivative of Plaintiff's other warranty claims. Thus, Defendant has not met its burden of demonstrating that it is entitled to judgment as a matter of law, because Plaintiff's other warranty claims have survived summary adjudication. Accordingly, Defendant's motion is denied with respect to Plaintiff's first cause of action as well.

Conclusion:

Defendant's motion for summary judgment and adjudication is denied.